

within it is *ultra vires* and nugatory (*f*), and a disclaimer, or renunciation by answer in chancery was held not to operate as a renunciation within the Act (*g*), and a renunciation is not complete until it has been entered and recorded in the proper office (*h*). But it has not been settled that an executor after renunciation may not on proper grounds retract his renunciation (*i*). By 21 & 22 Vict. c. 95, s. 22, whenever an executor survives the testator, but dies without having taken probate, or is cited to take probate and does not appear, the right of such person in respect of the executorship shall wholly cease, and representation to the [*224] testator and the administration of *his effects shall and may, without any further renunciation, go, devolve and be committed in like manner as if such person had not been appointed executor.

4. **Whether term in a trustee requires a prerogative probate.**—If the lands comprised in a trust term were situate in a different diocese from that in which the trustee was domiciled, it seems that previously to 20 & 21 Vict. c. 77, which created the Court of Probate, a *prerogative* probate or limited administration was necessary before the term could have been legally transferred (*a*).

Administration limited to trust property.—If there be a difficulty in the way of probate or grant of *general* letters of administration, *special* letters of administration limited to the *trust property* may be taken out (*b*).

5. **Whether a chattel may be taken in execution for the debt of the trustee.**—A chattel found by the sheriff in the possession of a debtor is *prima facie* the debtor's own property, and as such is liable to be taken in execution for his debt, but if the sheriff knowing the chattel to be bound by a clear trust for another were to sell it for the debt of the trustee, it would be a tortious act in him (*c*), and the creditor who

(*f*) *Re Whitham*, 1 L. R. P. & D. 303; *In the Goods of Delacour*, 9 I. R. Eq. 86.

(*g*) *Chalon v. Webster*, W. N. 1873, p. 189.

(*h*) *In the Goods of Morant*, 3 L. R. P. & D. 151.

(*i*) *In the Goods of Gill*, 3 L. R. P. & D. 113.

(*a*) See *Crosley v. Archdeacon of Sudbury*, 3 Hagg. 201.

(*b*) *In the Goods of Prothero*, 3 L. R. P. & D. 209.

(*c*) *Farr v. Newman*, 4 T. R. 621,